

U.O.Note No.2498/SC.D/75-4, Genl.Admn. (SC.D) Dept., dt.25.11.1975: Issue of sanction of prosecution of Government Servants, State and Subordinate services, by Government alone.

Subject Heading : Sanction of prosecution - Government to issue against State as well as Subordinate Services

The Committee of the Secretaries to the Government in its meeting held on 02.09.1975 observed that prosecution in trap cases was not being sanctioned in time. The delay, it was pointed out had been occurring on account of the Government referring the matter to the Heads of Departments. A point was therefore made whether prosecution could not straight-away be sanctioned by the Government themselves. Clause (1) of article 311 of the Constitution of India prohibits the removal or dismissal of a Government servant by an authority subordinate to that by which he was appointed, and under rule 12 of the Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, the Government may impose the penalties of removal and dismissal specified in clauses (vii) and (viii) of rule 8 of the said rules, on members of the State services. Rule 15(b) of the said rules also provides that the authority which may impose on a member of the Subordinate service, the penalties of removal and dismissal from service shall be the appointing authority or any higher authority. It is, therefore, competent for the State Government to remove or dismiss any member of a State Service or a Subordinate Service. Thus, sanction for prosecution required under section 6(1)(b) of the Prevention of Corruption Act, 1947, may be accorded by the State Government in the case of any member of a service, State or Subordinate even though in the case of certain Government servants the authority to accord sanction under the said Act may be the authority subordinate to Government. In the circumstances, the Departments of Secretariat are informed that in future in cases where the reports of the Anti-Corruption Bureau together with the advice of the Vigilance Commission for criminal prosecution of Government servants are received by them, they may themselves issue sanction order for prosecution instead of sending the case to the concerned subordinate authorities.

2. Similarly in the cases of employees of Zilla Parishads, Panchayat Samithis, and Municipalities, sanction for prosecution under the Prevention of Corruption Act, 1947 may be accorded by the Government in respect of Public servants who cannot be removed or dismissed except by or with the sanction of the Government. But in the case of those employees who may be removed or dismissed from service, only by an authority other than the Government, it is only that authority that can accord sanction for prosecution under the said Act. Therefore the Departments of Secretariat may take action in such cases.